

9	Hannett v. Serendipity Hearing, Inc., et al. 2021-01229201	<u>Order to Show Cause re: Dismissal in Case No. 2021-01229201</u> The Order to Show Cause re Dismissal in Case No. 2021-01229201 remains scheduled for June 11, 2026 at 2:00 p.m. in Department CX105. Plaintiffs are ordered to appear. Failure to appear will result in dismissal of the entire action.
10	Jones, et al. v. JW Marriott Anaheim Resort 2021-01183306	Off calendar.
11	Navarro v. Beta Bionics, Inc. 2024-01392520	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$200,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed); \$60,000.00 for attorneys' fees (not to exceed); \$25,000.00 for attorneys' costs (not to exceed); \$5,850.00 for settlement administration fees (not to exceed); and \$20,000.00 total PAGA penalties (\$15,000.00 to LWDA). Plaintiff is ordered to file and serve <u>by June 18, 2026</u> a revised proposed order (stating the above amounts) with all exhibits attached: (1) a fully executed copy of the settlement agreement; (2) fully executed copies of the amendments to the settlement agreement; and (3) the notice packet (revised as stated above). Only <u>one</u> copy of the notice packet should be attached to the proposed order as an exhibit. Duplicate or superseded copies of the notice packet should not be attached to the proposed order. The notice packet should include the exclusion and objection forms, which should be revised as stated in the court's February 5, 2026 order (ROA 101): (1) All text after "[ADDRESS LINE 2]" and before "By signing below, I am excluding myself from the Settlement" on the exclusion form (i.e., the bolded text beginning with "DO YOU WANT TO PARTICIPATE . . ." and ending with "OR NOT PARTICIPATING IN THE THIS SETTLEMENT") should be removed; and (2) The following sentence should be removed from the objection form: "I HEREBY CONFIRM THAT I WAS EMPLOYED BY BETA BIONICS, INC. DURING THE CLASS PERIOD AS A NON-EXEMPT EMPLOYEE." The final approval hearing is scheduled for <u>October 22, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org).

		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
12	Rodriguez v. Covidien LP, et al. 2024-01394865	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$1,610,000 class action and PAGA settlement. The court has the following questions and comments: 1. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply with applicable court rules may result in sanctions and/or an order striking the overlong brief. <u>As to the settlement:</u> 2. The settlement agreement is between plaintiff and defendant Covidien LP. How and when does plaintiff propose to resolve the case against defendants Medtronic, Inc. and Medtronic USA, Inc.? 3. Plaintiff should state her total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). Plaintiff should also submit a copy of her individual settlement agreement. 4. The "Released Class Claims" in paragraph 1.38 should be revised as follows: (i) the word "reasonably" should be inserted in the second sentence after "or" and before "could have been alleged"; and (ii) in the second sentence, the phrase "of the First Amended Class Action and Representative Action Complaint" should be replaced with "alleged in the First Amended Class Action and Representative Action Complaint." 5. In the first sentence of the "Released PAGA Claims" in paragraph 1.39 the redundant phrase "for civil penalties available under PAGA" should be removed. The second sentence is overbroad and unclear and should be removed. In addition, the phrase "PAGA Employees" does not appear to be defined in the settlement agreement and should be replaced with a term (e.g., Aggrieved Employees) that is defined in the agreement. 6. The "Released Parties" provision in paragraph 1.40 is overbroad as it includes unrelated, unidentified and/or ambiguous third parties such as "affiliates" and "sponsored employee benefit plans, and their respective successors and predecessors in interest, all of their respective officers, directors, employees, administrators, fiduciaries, trustee and agents, and each of their past, present and future officers, directors, shareholders, employees, agents, principals, heirs, representatives,